

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: _____

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	First Respondent
and	
MEDSCHEME HOLDINGS (PTY) LTD	Second Respondent

INDEX AND SCHEDULE OF PARTS

STATEMENT OF CLAIM — CONSTRUCTIVE DISMISSAL / EEA / PDA / COPYRIGHT

(Rule 6 of the Labour Court Rules, GN 1665 of 14 October 2011, as amended)

Filed: 7 April 2026

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PART	SUBJECT MATTER
PART A	JURISDICTION AND REFERRAL BASIS
PART B	THE PARTIES
PART C	THE EMPLOYMENT RELATIONSHIP AND THE BAIT-AND-SWITCH
PART D	MENTAL HEALTH DISCLOSURE AND FAILURE TO ACCOMMODATE
PART E	THE UNLAWFUL SALARY DEDUCTION — BCEA SECTION 34(2)
PART F	GENDER IDENTITY DISCRIMINATION — THE 'WILMA' INCIDENT
PART G	PROTECTED DISCLOSURE — PATIENT SAFETY (GEXUS/DMS INTEGRATION GAP)
PART H	MISAPPROPRIATION OF INTELLECTUAL PROPERTY — CPD PROGRAMME
PART I	THE RECORDED ADMISSION OF RETALIATORY INTENT
PART J	INSTITUTIONAL SILENCE AND EXHAUSTION OF INTERNAL REMEDIES
PART K	THE EMPLOYER'S BAD-FAITH OPPOSING AFFIDAVIT
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PART M	CAREER DESTRUCTION — INABILITY TO PRACTISE NURSING
PART N	POST-RESIGNATION VICTIMISATION
PART O	REGULATORY AND THIRD-PARTY CONFIRMATION OF MATERIAL FACTS
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PART Q	QUANTIFICATION OF LOSS
PART R	RELIEF SOUGHT
PART S	VERIFICATION AND DECLARATION (INCLUDING PERJURY RESERVATION)

SECTION 2: SCHEDULE OF ANNEXURES

The following documents are attached to and form part of this Statement of Claim. Each document is identified by the reference used in the body of the Statement of Claim.

ANN.	DESCRIPTION	DATE
"A"	Interview invitations for 'Specialist: Care Manager' role — three separate invitations	January 2024
"B"	Assessment instructions and link – Specialist: Care Manager position	29 January 2024
"C"	Fingerprint criminal check booking confirmation – pre-employment screening	21 February 2024
"D"	Employment contract designating position as 'Care Coordinator' (Grade B4M1, CTC R490,032 p.a.) — evidence of bait-and-switch	9 April 2024
"E"	First Aider roster drafted and implemented by Applicant as Acting Chair: EHS and Lead First Aider (2nd, 3rd and 4th floors)	25 July 2025
"F"	Sick note: Dr Jacques Malan – Applicant unfit for work from 18 March 2025; admitted for 3–4 weeks inpatient treatment (severe depression, PTSD)	1 April 2025
"G"	Mental health disclosure email to Mapule Mashele (Senior Manager): Dr Malan's psychiatric letter provided placing Second Respondent on formal notice of disability	16 May 2025
"H"	Meeting feedback from Mary-Ann Jones (Team Leader): 'we do not apply staggering of money owed' — refusal to accommodate disability	16 April 2025
"I"	Payslip for July 2025 confirming net pay of R15,679.29 and deduction of R14,811.77 (40.47% of gross) — evidence of unlawful deduction	July 2025
"J"	AOD Policy screenshot confirming 25% cap on deductions; Jones exchange stating 'what is illegal?' after acknowledging the cap	24 July 2025
"K"	'Wilma' Microsoft Teams message posted by Mary-Ann Jones in team-wide channel immediately after Applicant proposed clinical filtering strategy; 'NO FILTERING' highlighted in red	23 September 2025
"L"	Formal complaint of sexual orientation discrimination and harassment (11 pages) filed with Human Resources	25 September 2025
"M"	Mashele's investigation closure report: 'typo' finding; Applicant not removed from Jones's team — evidence of whitewash investigation	1 October 2025
"N"	Gexus/DMS root cause analysis and protected disclosure to Jones and Lisa Mari (Responsible Pharmacist) regarding false non-adherence letters to GEMS members	23 October 2025
"O"	Transcript and/or recording of 31 October 2025 meeting: Jones's retaliatory admission ('You made a case of harassment against me, so I can make a case of harassment against you')	31 October 2025
"P"	Formal grievance against Mary-Ann Jones (malicious intent, gaslighting, retaliation, orchestrated provocation, institutional silence)	2 November 2025
"Q"	Executive escalation to leadership (32-page evidence bundle, requests for paid leave, financial settlement, written guarantee of non-retaliation)	4 December 2025
"R"	Respondent's opposing affidavit in CCMA Case WECT23564-25 (personal attacks on Applicant's psychiatric condition and professional character; demand for costs) — evidence of bad faith and disability discrimination under oath	10 December 2025
"S"	Resignation letter citing opposing affidavit as final intolerable act — evidence of constructive dismissal	11 December 2025

"T"	CPUT Postgraduate Diploma in Occupational Health Nursing acceptance letter — lost opportunity due to financial sabotage by Respondents	2026
"U"	uFiling portal screenshot confirming 'No Information' for June 2025 UIF period — evidence of UIF non-declaration	2026
"V"	Certificate of Service (disputed 'Care Coordinator' designation); request for 'Naming Convention' meeting recording; refusal to correct — contravention of BCEA s42	January 2026
"W"	CMS referral letter identifying 'Administrative Misconduct and Ethical Failure' in relation to Gexus/DMS integration gap — independent third-party corroboration	2026
"X"	SAHRC acknowledgment of seriousness of allegations of victimisation and financial prejudice; referrals to CCMA, Labour Court and Department of Employment and Labour	2026
"Y"	CCMA Certificates of Non-Resolution: WECT23564-25 and WECT24486-25 — jurisdictional basis for this Statement of Claim	9 January 2026
"Z"	EthicHawks Full Master Chronological Register (148 entries, 11 January 2024 – 2 April 2026) — comprehensive evidentiary timeline	3 April 2026
"AA"	CPD programme developed by Applicant and presented to management (April 2025); evidence of independent authorship and management rejection; evidence of subsequent implementation without attribution (October 2025) — in support of Part H (Misappropriation of Intellectual Property)	April 2025 / October 2025

SECTION 3: FILING AND SERVICE PARTICULARS

Filing Method: Labour Court Online Portal (OCJ) and/or manual filing with Registrar, Labour Court, Cape Town

Service Method: Electronic mail — IR@afrocentrichealth.com (Respondent's authorised service address per Annexure "R")

Date of Filing and Service: 8 April 2026

Prescription Deadline: 9 April 2026 (90 days from 9 January 2026 — CCMA Certificates of Non-Resolution)

CCMA Case References: WECT23564-25 and WECT24486-25

Concurrent Proceedings: Case No. 2026-077546 — BCEA s77A unlawful salary deduction claim

Applicant's Email: info@ethichawks.co.za

Applicant's Tel: 069 635 1435 / 063 378 8782

ANNEXURE TABS

STATEMENT OF CLAIM — MATTHEE v AFROCENTRIC HEALTH & MEDSCHEME HOLDINGS

Labour Court, Cape Town | Filed: 8 April 2026

Each following page constitutes a separator tab for the corresponding annexure. Annexures should be inserted immediately after their respective tab.

ANNEXURE

"A"

Interview invitations for 'Specialist: Care Manager' role — three separate invitations

Date: January 2024

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"B"

Assessment instructions and link – Specialist: Care Manager position

Date: 29 January 2024

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"C"

Fingerprint criminal check booking confirmation – pre-employment screening

Date: 21 February 2024

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"D"

Employment contract designating position as 'Care Coordinator' (Grade B4M1, CTC R490,032 p.a.) — evidence of bait-and-switch

Date: 9 April 2024

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"E"

First Aider roster drafted and implemented by Applicant as Acting Chair: EHS and Lead First Aider (2nd, 3rd and 4th floors)

Date: 25 July 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"F"

Sick note: Dr Jacques Malan – Applicant unfit for work from 18 March 2025; admitted for 3–4 weeks inpatient treatment (severe depression, PTSD)

Date: 1 April 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"G"

Mental health disclosure email to Mapule Mashele (Senior Manager): Dr Malan's psychiatric letter provided placing Second Respondent on formal notice of disability

Date: 16 May 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"H"

Meeting feedback from Mary-Ann Jones (Team Leader): 'we do not apply staggering of money owed' — refusal to accommodate disability

Date: 16 April 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"I"

Payslip for July 2025 confirming net pay of R15,679.29 and deduction of R14,811.77 (40.47% of gross) — evidence of unlawful deduction

Date: July 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"J"

AOD Policy screenshot confirming 25% cap on deductions; Jones exchange stating 'what is illegal?' after acknowledging the cap

Date: 24 July 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"K"

'Wilma' Microsoft Teams message posted by Mary-Ann Jones in team-wide channel immediately after Applicant proposed clinical filtering strategy; 'NO FILTERING' highlighted in red

Date: 23 September 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"L"

Formal complaint of sexual orientation discrimination and harassment (11 pages) filed with
Human Resources

Date: 25 September 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"M"

Mashele's investigation closure report: 'typo' finding; Applicant not removed from Jones's team
— evidence of whitewash investigation

Date: 1 October 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"N"

Gexus/DMS root cause analysis and protected disclosure to Jones and Lisa Mari (Responsible Pharmacist) regarding false non-adherence letters to GEMS members

Date: 23 October 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"O"

Transcript and/or recording of 31 October 2025 meeting: Jones's retaliatory admission ('You made a case of harassment against me, so I can make a case of harassment against you')

Date: 31 October 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"P"

Formal grievance against Mary-Ann Jones (malicious intent, gaslighting, retaliation,
orchestrated provocation, institutional silence)

Date: 2 November 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"Q"

Executive escalation to leadership (32-page evidence bundle, requests for paid leave, financial settlement, written guarantee of non-retaliation)

Date: 4 December 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"R"

Respondent's opposing affidavit in CCMA Case WECT23564-25 (personal attacks on Applicant's psychiatric condition and professional character; demand for costs) — evidence of bad faith and disability discrimination under oath

Date: 10 December 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"S"

Resignation letter citing opposing affidavit as final intolerable act — evidence of constructive dismissal

Date: 11 December 2025

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"T"

CPUT Postgraduate Diploma in Occupational Health Nursing acceptance letter — lost
opportunity due to financial sabotage by Respondents

Date: 2026

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"U"

uFiling portal screenshot confirming 'No Information' for June 2025 UIF period — evidence of
UIF non-declaration

Date: 2026

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE



Certificate of Service (disputed 'Care Coordinator' designation); request for 'Naming Convention' meeting recording; refusal to correct — contravention of BCEA s42

Date: January 2026

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"W"

CMS referral letter identifying 'Administrative Misconduct and Ethical Failure' in relation to
Gexus/DMS integration gap — independent third-party corroboration

Date: 2026

*Mathee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"X"

SAHRC acknowledgment of seriousness of allegations of victimisation and financial prejudice; referrals to CCMA, Labour Court and Department of Employment and Labour

Date: 2026

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"Y"

CCMA Certificates of Non-Resolution: WECT23564-25 and WECT24486-25 — jurisdictional
basis for this Statement of Claim

Date: 9 January 2026

*Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Labour Court, Cape Town | Statement of Claim (Constructive Dismissal)*

ANNEXURE

"Z"

EthicHawks Full Master Chronological Register (148 entries, 11 January 2024 – 2 April 2026)
— comprehensive evidentiary timeline

Date: 3 April 2026

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"AA"

CPD programme developed by Applicant and presented to management (April 2025); evidence of independent authorship and management rejection; evidence of subsequent implementation without attribution (October 2025) — in support of Part H (Misappropriation of Intellectual Property)

Date: April 2025 / October 2025

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